

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF KINGS-----X
KARIM RICHARDSON,

Index No:

506569/16

Plaintiff,

VERIFIED COMPLAINT

-against-

THE CITY OF NEW YORK, THE POLICE DEPARTMENT
OF THE CITY OF NEW YORK,, P.O. JOHN FUNK AND
OTHER P.O'S HEREIN NAMED JOHN DOES,

Defendants.

-----X
Plaintiff, KARIM RICHARDSON, complaining of the defendants, by HARNICK
& HARNICK, his attorneys, alleges upon information and belief:**FOR A FIRST SEPARATE AND DISTINCT CAUSE OF ACTION ON
BEHALF OF PLAINTIFF, KARIM RICHARDSON FOR FALSE
IMPRISONMENT****FIRST:** That at all the times mentioned herein, the defendant, The City of New
York (hereinafter-referred to as "The City"), was and still is a domestic municipal
corporation.**SECOND:** That at all the times mentioned herein, the defendant, The Police
Department of The City of New York, (hereinafter referred to as "The Police
Department"), was and still is a domestic municipal corporation.**THIRD:** That at all times mentioned herein, the defendant, The City owned,
operated, maintained, and controlled the defendant, The Police Department.**FOURTH:** That on OCTOBER 21ST 2015, plaintiff duly filed with defendants,
the City of New York a verified notice of claim setting forth the time and place

where the accident, which is the subject of this lawsuit, occurred, the nature and extent of the injuries, the damages sustained and the amount claimed.

FIFTH: That prior to the commencement of this action, on or about the 21st Of October 2015 , and within ninety days after plaintiff's cause of action arose, plaintiff caused to be served upon the defendants by its duly authorized officer, a verified Notice of Claim containing all of the data required by the statute in such cases made and provided.

SIXTH: More than thirty (30) days have elapsed since the presentation of said claim, and the defendant, The City of New York, has failed to adjust and/or dispose of the claim presented therein.

SEVENTH: That on 1/19/16 a 50-H hearing was held.

EIGHTH: That this cause of action is commenced within one year and ninety days after same arose.

NINTH: That on August 22nd 2015 the defendants, The City and The Police Department as well as their agents servants and or employees including but not limited to defendant, P.O. JOHN FUNK (herein P.O. FUNK individually, and severally, acting within their scope of employment maliciously, wrongfully, unlawfully, improperly, and without probable cause and without any basis in law or fact, falsely swore a criminal complaint against the plaintiff, KARIM RICHARDSON in order to effect the false forcible, and unlawful arrest and imprisonment of said plaintiff.

TENTH: That on or about AUGUST 22ND 2015, the defendant, P.O. FUNK individually and severally and/or other agents servants and/ or employees of the

defendants, The City and The Police Department wrongfully, unlawfully and without warrant or other legal process arrested the plaintiff, KARIM RICHARDSON against his will at the situs of the arrest and at PSA 2., well as Central Booking in the County of Kings, City and State of New York.

ELEVENTH: That on or about the 22nd of August 2015, the plaintiff, KARIM RICHARDSON was forcibly restrained, imprisoned and detained by the defendants, The City, and The Police Department, as well as their agents, servants and or employees including but not limited to the defendant, P.O. FUNK was subjected to being held in a various holding cells for multiple hours and was in handcuffs at various times without having his Miranda rights read to him or informed of what he was being charged with, and was unlawfully charged with the crimes of Resisting Arrest NY Penal Code 205.30 and Disorderly Conduct NY Penal Code 240.20

TWELFTH: That from the plaintiff, KARIM RICHARDSON as a result of the wanton reckless and malicious actions of the defendants, The City, and The Police Department, as well as their agents servants and/ or employees including but not limited to the defendant, P.O. FUNK the plaintiff, was caused to be maced and placed in an NYPD van, but then taken out forcefully and kicked, punched and stepped on when he asked why his younger brother Kamel was being put in the van with him, and then put back in the Van and brought to PSA2 wherein in he woke up in the lobby of PSA2 and after refusing to answer questions was thrown to the floor and kicked and punched in the ribs and a knee was placed on his head, the plaintiff was then taken to Brookdale Hospital where

he woke up in handcuffs at approximately 1am on August 23rd 2015 and where he remained till 7am at which time he was transported in handcuffs back to PSA 2 and placed in a holding cell till 10am at which time he was then transported to Central Booking in Brooklyn in handcuffs on August 23rd 2015 where he remained until approximately 10pm pm at which time he was arraigned before a Criminal Court Judge in Brooklyn on 8/23/15 and was informed of the above said charges and then released shortly thereafter.

THIRTEENTH: That the matter herein was adjourned to the ACD calendar on 2/22/16 at which time a dismissal but as such the plaintiff had been caused due to the wanton, reckless and malicious actions of the defendants The City, and The Police Department, as well as their agents servants and/ or employees including but not limited to the P.O. FUNK to live in fear and with mental anguish of a potentially long jail sentence for approximately 6 months until the above said charges were dismissed

FOURTEENTH: That the aforesaid actions of the defendants, The City, The Police Department, and their agents servants and/ or employees including but not limited to the defendant, P.O. FUNK on or about the 22ND of August 2015 amounted to wanton, reckless outrageous conduct.

FIFTEENTH: That by reason of the foregoing occurrence, the plaintiff, KARIM RICHARDSON, was caused to sustain serious, severe and permanent injuries; was greatly humiliated and suffered great mental distress; was compelled to obtain hospital and medical care, aid and attention; was confined to his bed and home; was unable to attend to his duties and he sustained other and

further expenses, all to his damage in a sum that exceeds the jurisdictional limits of all lower courts and that said conduct amounted to wanton and reckless behavior for which plaintiff is entitled to sum that exceeds the jurisdictional limits of all lower courts for punitive damages.

FOR A SECOND SEPARATE AND DISTINCT CAUSE OF ACTION

FOR FALSE ARREST ON BEHALF OF PLAINTIFF, KARIM RICHARDSON

SIXTEENTH: The plaintiff, KARIM RICHARDSON repeats, reiterates and re-alleges each and every allegation of the Complaint numbered "FIRST" through "FIFTEENTH" inclusive, with the same force and effect as if fully and at length herein set forth.

SEVENTEENTH: That on or about August 22nd 2015, the defendants, The City, and The Police Department, as well as their agents servants and/ or employees including but not limited to the defendant, P.O. FUNK were working within the scope of their employment, when without cause or provocation, they falsely arrested the plaintiff, KARIM RICHARSON

EIGHTEENTH: That the aforesaid actions of the defendants, The City, The Police Department, and their agents servants and/ or employees including but not limited to the defendant, P.O. FUNK on or AUGUST 22ND 2015, amounted to wanton, reckless outrageous conduct.

NINETEENTH: That the injuries sustained by the plaintiff herein were caused, due to the actions of the defendants, The City, and The Police Department as well as their agents, servants and/or employees including but not limited to P.O. FUNK with no actions on his part contributing in any way thereto.

TWENTIETH: That at the time of the false arrest the defendants, The City, and The Police Department as well as their agents, servants and/or employees including but not limited to defendant, P.O. FUNK, were acting within the scope of their employment.

TWENTY-FIRST: That by reason of the foregoing occurrence, the plaintiff, KARIM RICHARDSON, was caused to sustain serious, severe and permanent injuries; was compelled to obtain hospital and medical care, aid and attention; was confined to his bed and home; was unable to attend to his duties and was caused to sustain other and he sustained other and further expenses, all to his damage in a sum that exceeds the jurisdictional limits of all lower courts and that said conduct amounted to wanton and reckless behavior for which plaintiff is entitled to sum that exceeds the jurisdictional limits of all lower courts for punitive damages.

**FOR A THIRD AND SEPARATE AND DISTINCT CAUSE OF ACTION FOR
INTENTIONAL INFLICTION OF EMOTIONAL DISTRESS ON BEHALF OF
PLAINTIFF KARIM RICHARDSON.**

TWENTY-SECOND: That the plaintiff, KARIM RICHARDSON reiterates and re-alleges each and every allegation of the Complaint numbered "FIRST" through " TWENTY-FIRST" inclusive, with the same force and effect as if fully and at length herein set forth

TWENTY-THIRD: That on or about August 22nd 2015, the defendants, The City and The Police Department as well as their agents, servants and/or employees, including but not limited to defendant, P.O FUNK, while in the scope

of their employment did willfully and intentionally, inflict extreme emotional distress on the plaintiff, KARIM RICHARSON at the situs of the arrest, the PSA2 Brookdale Hospital, as well as Central Booking, and while confined detained, and handcuffed at and on the way to from PSA2, and Central Booking, and without any provocation on the part of said plaintiff.

TWENTY-FOURTH: That due to the wanton, reckless and malicious actions of the defendants The City, and The Police Department, as well as their agents servants and/ or employees including but not limited to the defendant, P.O. FUNK on or about August 22nd 2015 the plaintiff was intentionally subjected to extreme emotional distress at the situs of the incident, while being transported to PSA 2, while at PSA2, while at Brookdale Hospital, while at Central Booking and going for his arraignment, and in the approximately 6 months till 2/22/16 at which time the above said charges against him were dismissed.

TWENTY-FIFTH: That the aforesaid actions of the defendants, The City, The Police Department, and their agents servants and/ or employees including but not limited to the defendant, P.O. FUNK, on or about August 22nd 2015 amounted to wanton, reckless outrageous conduct.

TWENTY-SIXTH: That at the time of the intentional infliction of emotional distress the defendants, The City, The Police Department, and their agents servants and/ or employees including but not limited to the defendant, P.O. FUNK were acting within the scope of their employment.

TWENTY-SEVENTH: That by reason of the foregoing occurrence, the

plaintiff, KARIM RICHARSON was caused to sustain serious, severe and permanent injuries; was compelled to obtain hospital and medical care, aid and attention; was confined to his bed and home; was unable to attend to his duties and was caused to sustain other and he sustained other and further expenses, all to his damage in a sum that exceeds the jurisdictional limits of all lower courts and that said conduct amounted to wanton and reckless behavior for which plaintiff is entitled to a sum that exceeds the jurisdictional limits of all lower courts for punitive damages.

**FOR A FOURTH AND SEPARATE AND DISTINCT CAUSE
OF ACTION FOR A VIOLATION OF HIS CIVIL RIGHTS ON
BEHALF OF PLAINTIFF, KARIM RICHARDSON**

TWENTY-EIGHT: That plaintiff, KARIM RICHARDSON repeats, reiterates and re-alleges each and every allegation of the Complaint numbered "FIRST" through "TWENTY-SEVENTH" inclusive, with the same force and effect as if fully and at length herein set forth.

TWENTY-NINTH: That on or about the 22ND of August 2015 defendants The City, and The Police Department, as well as their agents servants and/ or employees including but not limited to the defendant, P.O. FUNK were working within the scope of their employment, when they deprived the plaintiff of his civil rights under the Constitution of the State of New York and the Constitution of the United States, as well as other State ordinances, statutes, codes and rules, including, 42 U.S.C. SECS. 1981, 1983, 1985, and 28. U.S.C. 1343.

THIRTIETH: That afore said actions of the defendants, The City, and The

Police Department, as well as their agents servants and/ or employees including but not limited to the defendant, P.O. FUNK herein amounted to wanton, reckless and outrageous conduct.

THIRTY-FIRST: That the injuries sustained by the plaintiff herein were caused due to the negligence of the defendants, The City, and The Police Department, as well as their agents servants and/ or employees including but not limited to the defendant, with no actions on his part contributing in any way thereto.

THIRTY-SECOND: That at the time of the violation of his civil rights under the Constitution of the State of New York and the Constitution of the United States, as well as other State ordinances, statutes, codes and rules, including, 42 U.S.C. SECS. 1981, 1983, 1985, and 28. U.S.C. 1343, the defendants, their agents, servants and/or employees were acting within the scope of their employment.

THIRTY-THIRD: That by reason of the foregoing occurrence, the plaintiff, was caused to sustain serious, severe and permanent injuries; was compelled to obtain hospital and medical care, aid and attention; was confined to his bed and home; was unable to attend to his duties and was caused to sustain other and he sustained other and further expenses, all to his damage in a sum that exceeds the jurisdictional limits of all lower courts and that said conduct amounted to wanton and reckless behavior for which plaintiff is entitled to sum that exceeds the jurisdictional limits of all lower courts for punitive damages.

**FOR A FIFTH AND SEPARATE AND DISTINCT CAUSE OF
ACTION FOR NEGLIGENT INFLICTION OF EMOTIONAL
DISTRESS ON BEHALF OF PLAINTIFF, KARIM RICHARDSON**

THIRTY-FOURTH: That plaintiff, repeats, reiterates and re-alleges each and every allegation of the Complaint numbered "FIRST" through "THIRTY-THIRD" inclusive, with the same force and effect as if fully and at length herein set forth.

THIRTY-FIFTH: That on or about the 22ND of August 2015 the defendants, The City and The Police Department as well as their agents, servants and/or employees, including but not limited to P.O. FUNK, while in the scope of their employment did negligently, inflict extreme emotional distress on the plaintiff, at the situs of the arrest, at Brookdale Hospital, at Central Booking in Brooklyn, while at PSA2, while going for his arraignment, and while confined detained, and handcuffed at the at Central Booking in Brooklyn, and while at PSA2. while going for his arraignment, and in the approximately 6 month period from the time he was released on 8/23/15 from Central Booking/Criminal Court on till 2/22/16 at which time the charges against him were dismissed .

THIRTY-SIXTH: That due to the wanton, reckless and malicious actions of the defendants The City, and The Police Department, as well as their agents servants and/ or employees including but not limited to the defendant, P.O. FUNK the plaintiff was negligently subjected the subjected to extreme emotional distress from while at the situs of his arrest, at Brookdale Hospital, at PSA2., at Central Booking in Brooklyn, while going for his arraignment, and in the approximately 6 month period from the time he was released on from Central Booking/Criminal Court on 8/23/15 till 2/22/16 at which time the charges against him were dismissed.

THIRTY-SEVENTH : That the aforesaid actions of the defendants, The City, The Police Department, and their agents servants and/ or employees including but not limited to the defendant, P.O. Funk on August 22nd 2015 amounted to wanton, reckless outrageous conduct.

THIRTY-EIGHTH: That on August 22nd 2015. The City and The Police Department as well as their agents, servants and/or employees, including but not limited to defendant, P.O. FUNK, were working within the scope of their employment, when they negligently caused the plaintiff to endure severe emotional distress.

THIRTY-NINTH: That the injuries sustained by the plaintiff herein were caused due to the negligence of the defendants, their agents, servants and/or employees with no actions on his part contributing in any way thereto.

FORTIETH: That the defendants, their agents, servants and/or employees actions herein amounted to wanton, reckless and outrageous conduct.

FORTY-FIRST: That at the time of the negligent infliction of emotional distress the defendants, their agents, servants and/or employees were acting within the scope of their employment.

FORTY-SECOND: That by reason of the foregoing occurrence, the plaintiff, was caused to sustain serious, severe and permanent injuries; was compelled to obtain hospital and medical care, aid and attention; was confined to his bed and home; was unable to attend to his duties and was caused to sustain other and he sustained other and further expenses, all to his damage in a sum that exceeds the jurisdictional limits of all lower courts and that said conduct amounted to

wanton and reckless behavior for which plaintiff is entitled to sum that exceeds the jurisdictional limits of all lower courts for punitive damages.

**FOR A SIXTH AND SEPARATE AND DISTINCT CAUSE OF ACTION
FOR MALICIOUS PROSECUTION ON BEHALF OF PLAINTIFF, KARIM
RICHARSON**

FORTY-THIRD: That plaintiff, repeats, reiterates and re-alleges each and every allegation of the Complaint numbered "FIRST" through "FORTY SECOND" inclusive, with the same force and effect as if fully and at length herein set forth.

FORTY-FOURTH: On or about the 22nd of August 2015, The City and The Police Department as well as their agents, servants and/or employees, including but not limited to defendant, P.O. Funk individually, and severally, maliciously and without probable cause, executed and swore to 2 accusatory instruments: charging plaintiff with the following: PL 240.21 Disorderly Conduct, and PS 205.30 Resisting arrest.

FORTY-FIFTH: Plaintiff, KARIM RICHARSON was thereafter compelled to appear in the Criminal Court of the City of New York, County of Kings, to defend himself against the above-described malicious, baseless, and ill founded charges.

FORTY-SIXTH: That it is contemplated that on FEBRUARY 22ND 2016 the aforesaid charges against the plaintiff were dismissed.

FORTY-SEVENTH: That by reason of the foregoing, the plaintiff, KARIM RICHARDSON, has been deprived of his liberty, subjected to ridicule, scorn and derision, damaged in his good name and reputation and subjected him to great

humiliation, mental and physical distress. That as a result thereof the plaintiff has suffered compensatory damages having a present value that exceeds the jurisdictional limits of all lower courts that would otherwise have jurisdiction of this matter.

**FOR A SEVENTH SEPARATE AND DISTINCT
CAUSE OF ACTION FOR ASSAULT ON BEHALF
OF PLAINTIFF KARIM RICHARDSON**

FORTY-EIGHTH: That the Plaintiff, KARIM RICHARDSON repeats, reiterates and realleges each and every allegation of the Complaint numbered "FIRST" through "FORTY-SEVENTH" inclusive, with the same force and effect as if fully and at length herein set forth

FORTY-NINTH: That on August 22nd 2015, the defendants, their agents, servants and/or employees of the defendants including P.O. Funk who were at the situs of the arrest did willfully and intentionally assault, strike, push, and grab, the plaintiff, KARIM RICHARDSON without any provocation on the part of said plaintiff.

FIFTIETH: That at the time of the assault, the defendants, their agents, servants and/ or employees, were acting within the scope of their employment.

FIFTY-FIRST: That by reason of the foregoing occurrence, the plaintiff, KARIM RICHARDSON was caused to sustain serious, severe and permanent injuries; was compelled to obtain hospital and medical care, aid and attention; was confined to his bed and home; was unable to attend to his duties and was caused to sustain other and he sustained other and further expenses, all to his

damage in a sum that exceeds the jurisdictional limits of all lower courts and that said conduct amounted to wanton and reckless behavior for which plaintiff is entitled to sum that exceeds the jurisdictional limits of all lower courts for punitive damages.

FOR A EIGHTH AND SEPARATE AND DISTINCT ACTION

FOR EXCESSIVE FORCE ON BEHALF OF THE INFANT, PLAINTIFF

KARIM RICHARDSON

FIFTY- SECOND: That plaintiff, repeats, reiterates and re-alleges each and every allegation of the Complaint numbered "FIRST" through "FIFTY-SECOND" inclusive, with the same force and effect as if fully and at length herein set forth.

FIFTY-THIRD: That the defendants, and the agents, servants and/or employees of the defendants including P.O. FUNK at the sites of the arrest at PSA2, used excessive force against in violation of the 4th 14th and 8th Amendments when they sprayed mace in the plaintiff, KARIM RICHARSON'S , face and took him out of an NYPD VAN forcefully and Physically, and proceeded to kick, punch and step on him when he asked why his younger brother Kamel was being put in the van with him and in throwing him to the floor at PSA2 and then kicking and punching in the ribs and placing a knee on his head him after he refused to answer questions.

FIFTY FOURTH: There was no legal justification for the defendants, and the agents, servants and/or employees of the defendants including P.O. FUNK.

FIFTY FIFTH: Defendants actions were objectively unreasonable.

FORTY-SIXTH: The actions of the defendants, and the agents, servants and/or employees of the defendants including P.O. FUNK at the situs of the arrest and at PSA 2 amounted to deliberate indifference to the rights of the plaintiff to be free of excessive force, unreasonable seizures under the Fourth and Fourteenth Amendments to the Constitutions of the United States as well as the applicable parts of The Constitution of the State of New York.

FIFTY-SEVENTH: The actions of the defendants, and the agents, servants and/or employees of the defendants at the sites of the arrest including P.O. FUNK amounts to unnecessary and wanton infliction of pain, and arises under the Eighth Amendment to the Constitutions of the United States and the applicable parts of The Constitution of the State of New York.

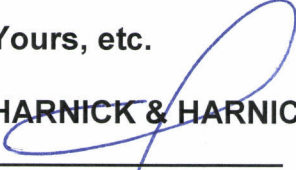
FIFTY-EIGHTH: That by reason of the foregoing excessive force, the plaintiff was caused to sustain serious, severe and permanent injuries; was compelled to obtain hospital and medical care, aid and attention; was confined to her bed and home; was unable to attend to her duties and was caused to sustain other and further expenses, all to her damage in a sum that exceeds the jurisdictional limits of all lower courts and that said conduct amounted to wanton and reckless behavior for which infant, plaintiff is entitled to sum that exceeds the jurisdictional limits of all lower courts for punitive damages.

WHEREFORE, the plaintiff demands judgment against the defendants on the First, Second, Third, Fourth, Fifth, Sixth, Seventh, and Eighth Causes of Action in the sum that exceeds the jurisdictional limits of all lower courts and that said conduct amounted to wanton and reckless behavior for which plaintiff is entitled

to sum that exceeds the jurisdictional limits of all lower courts for punitive damages together with the costs and disbursements of this action.

Dated: New York, New York
April 18th 2016

Yours, etc.


HARNICK & HARNICK, P.C.

THOMAS HARNICK
Attorneys for Plaintiff
305 Broadway, Suite 602
New York, New York 10007
(212) 962-5065

VERIFICATION

STATE OF NEW YORK)

ss:

COUNTY OF NEW YORK)

The undersigned, **THOMAS HARNICK**, an attorney admitted to practice in the Courts of New York State, shows:

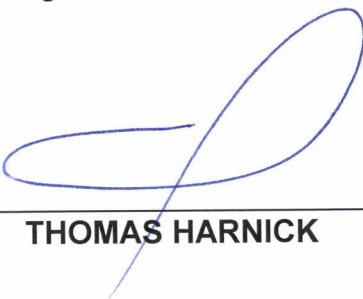
That he is a Partner in the law firm of **HARNICK AND HARNICK, P.C.** attorneys of record for the plaintiff, and personally in charge of the within action: that he has read the foregoing **SUMMONS AND VERIFIED COMPLAINT** and knows the contents thereof; that the same is true to his own knowledge, except as to those matters therein stated to be alleged on information and belief, and as to those matters, he believes the same to be true.

The grounds of deponent's belief as to all matters not stated upon his knowledge are as follows: investigations which he has caused to be made concerning the subject matter of this action, and statements of witnesses made herein.

Deponent further says that the reason this verification is made by deponent and not by the plaintiff is because the plaintiff does not reside within the county where your deponent has his offices.

The undersigned affirms that the foregoing statements are true, under the penalties of perjury:

Dated: New York, New York
April 18, 2016



THOMAS HARNICK

**SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF KINGS**

KARIM RICHARDSON

Plaintiffs,

-against-

**THE CITY OF NEW YORK, THE POLICE DEPARTMENT OF
THE CITY OF NEW YORK, and P.O. JOHN FUNK AND OTHER
P.O.'S HEREIN NAMED JOHN DOES**

Defendants.

SUMMONS AND VERIFIED COMPLAINT

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